

TENTATIVE RULING

Case: **Jaime v. Ford Motor Company et al.**
Case No. CV2024-3266

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

The Court **DENIES** plaintiff Renae Jaime's request to continue the hearing on defendant Ford Motor Company's motion for summary judgment, or alternatively, summary adjudication because plaintiff failed to submit affidavits supporting that facts essential to justify an opposition may exist but could not be presented. (Code Civ. Proc., § 437c, subd. (h).)

The Court declines to consider plaintiff's late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

The Court declines to rule upon defendant's evidentiary objections made within its responses and objections to plaintiff's separate statement in opposition to Ford's motion because "[a]ll written objections to evidence must be served and filed separately from the other papers...in opposition to the motion." (Cal. Rules of Court, rule 3.1354(b).)

The Court declines to rule on defendant's evidentiary objections to plaintiff's evidence as the evidence objected to is not germane to the disposition of defendant's motion. (Code Civ. Proc., § 437c, subd. (q).)

The Court rules on defendant's motion for summary adjudication as follows:

- Defendant's motion as to Issue 1 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the express warranty period and there was never more than one repair made to any aspect of said vehicle. (Civ. Code 1793.2, subds. (a)(3), (d)(2); *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 [the general rule is that an express warranty does not cover repairs made after the applicable time or mileage periods have elapsed]; *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 ["The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle."]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862: UMFs 1, 5 – 24.)
- Defendant's motion as to Issue 2 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff failed to present the subject vehicle for repair during the one-year implied warranty period. (Civ. Code, 1791.1; UMFs 1, 5 – 24.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar, supra*, 25 Cal.4th 826, at pp. 862.)

- Defendant's motion as to Issue 3 is **GRANTED**. (Code Civ. Proc., 437c, subds. (f)(1), (o), (p)(2).) The Court finds that defendant has met its initial burden to show that plaintiff does not possess nor can she obtain evidence to prove all the essential elements of her fifth cause of action for fraudulent inducement-concealment. (*Moncada v. West Coast Quartz Corp.* (2013) 221 Cal.App.4th 768, 775; see *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 946 [the issues on summary judgment are framed by the pleadings]); *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 580 – 593 [a moving defendant may rely on factually devoid discovery responses to meet the burden of proof on summary judgment and shift the burden to the plaintiff to show a triable issue of material fact]; UMFs 3, 4, 25 – 34; Compl., ¶¶ 58 – 64.) Further, plaintiff has not met her burden to show a triable issue of material fact as to this Issue. (*Aguilar, supra*, 25 Cal.4th 826, at pp. 862.)

Based on the Court's rulings above, defendant's motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Mota v. City of West Sacramento et al.**
Case No. CV2025-1324

Hearing Date: **March 19, 2026** **Department Fourteen** **9:00 a.m.**

Defendants City of West Sacramento, County of Yolo, Davison Joshua Graydon, and Brenden Michael McTighe’s (collectively, “defendants”) request for judicial notice is **GRANTED**. (Code Civ. Proc., §§ 452, subd. (d), 453.)

Defendants’ motion to consolidate case CV2025-1324 with case CV2025-2776 for all purposes is **GRANTED**. (Code Civ. Proc., § 1048, subd. (a).) The Court finds that Case Nos. CV2025-1324 and CV2025-2776 involve common questions of fact. (*Ibid.*) The Court finds that consolidating these actions will promote judicial efficiency, avoid the unnecessary duplication of evidence, and avoid any danger of inconsistent adjudications. (See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–979; see also *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1148, fn. 12.)

Case number CV2025-1324 shall be the lead case.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.